

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dov Levavi	Team: Team # 4	CCRB Case #: 201207249	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 06/05/2012 7:39 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/5/2013	Precinct: 103
Date/Time CV Reported Wed, 06/06/2012 12:04 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/06/2012 12:04 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Lapp	01940	949198	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kyle Glueckert	06823	949038	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Lapp	Force: PO Brian Lapp used a chokehold against § 87(2)(b)	A . Unsubstantiated
B . POM Brian Lapp	Force: PO Brian Lapp used physical force against § 87(2)(b)	B . Substantiated
C . POM Brian Lapp	Discourtesy: PO Brian Lapp spoke rudely to § 87(2)(b)	C . Unsubstantiated

Case Summary

On June 6, 2012, § 87(2)(b) called the CCRB to file a complaint on behalf of her son, § 87(2)(b) witnessed part of the incident. At approximately 7:39 p.m. on June 5, 2012, § 87(2)(b) was arrested for § 87(2)(b) by PO Brian Lapp in front of § 87(2)(b) in Queens. The following allegations resulted:

- **Allegation A – Discourtesy: PO Brian Lapp spoke rudely to** § 87(2)(b)
§ 87(2)(g)
it is recommended that Allegation A be closed as **unsubstantiated**.
- **Allegation B – Force: PO Brian Lapp used a chokehold against** § 87(2)(b)
§ 87(2)(g)
it is recommended that Allegation B be closed as **unsubstantiated**.
- **Allegation C – Force: PO Brian Lapp used physical force against** § 87(2)(b)
§ 87(2)(g)
it is recommended that Allegation C be closed as **substantiated**.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- *A black male who is § 87(2)(b) with black hair and brown eyes, § 87(2)(b) was § 87(2)(b) at the time of the incident.*

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 22, 2012 (encl. b3-7) about the incident that occurred at approximately 7:39 p.m. on June 5, 2012, at § 87(2)(b) and § 87(2)(b) in Queens.

Several minutes before the incident, § 87(2)(b) was inside his home taking pictures with his friend, § 87(2)(b) after coming home following school and basketball practice. At home, he changed from a white shirt with the words “PLAY” in large black letters into a black hoodie, blue cargo pants, and shiny red sneakers. § 87(2)(b) and § 87(2)(b) walked from § 87(2)(b) s house, through a park located near § 87(2)(b) and § 87(2)(b). In the park, § 87(2)(b) saw an acquaintance, identified by the investigation as § 87(2)(b). He recognized § 87(2)(b) and had given him money before when asked, but did not know his name. § 87(2)(b) said hello to § 87(2)(b) who asked him where he was going. § 87(2)(b) replied that he was going to the store and rode away. This interaction lasted 1-2 minutes. § 87(2)(b) did not see § 87(2)(b) rob anyone.

As § 87(2)(b) exited the park and continued down § 87(2)(b) toward § 87(2)(b), he saw a marked police vehicle turn around, follow § 87(2)(b) and stop him outside a store at the corner. § 87(2)(b) continued to walk toward the corner, where he stayed to watch the scene and speak to several friends who were there, including § 87(2)(b) (last name unknown). Meanwhile, § 87(2)(b) entered a nearby store to make a purchase. Outside the corner store, two officers in

uniform had § 87(2)(b) in handcuffs. PO1 was identified by the investigation as PO Brian Lapp and PO2 was identified by the investigation as PO Kyle Glueckert.

§ 87(2)(b) watched as PO Glueckert pushed § 87(2)(b) front-first against a wall while he was handcuffed. § 87(2)(b) admitted that he “mouthed off” and used profanities toward the officers as he approached and asked them why § 87(2)(b) was being handled roughly. § 87(2)(b) told them he had seen § 87(2)(b) minutes earlier and that he did not do anything. PO Lapp became upset and told § 87(2)(b) to leave and to “Shut the fuck up.” The officers walked back and forth to their vehicle, where the alleged victim of the robbery, identified by the investigation as § 87(2)(b) sat in the back seat. § 87(2)(b) walked away up the block, then walked back and saw that the officers still had § 87(2)(b) in custody, so he argued again. PO Lapp told § 87(2)(b) to “get the hell out of here,” and asked him, “Why do you keep running your mouth?” § 87(2)(b) walked away a second time, then returned and continued to argue with PO Lapp.

After about ten to fifteen minutes, PO Lapp told § 87(2)(b) that he had been identified as the perpetrator of a robbery. § 87(2)(b) did not see or hear § 87(2)(b) identify him as a suspect. § 87(2)(b) complied as PO Lapp handcuffed him. PO Lapp brought § 87(2)(b) into the store along with PO Glueckers and § 87(2)(b). § 87(2)(b) asked PO Lapp why he was arresting § 87(2)(b) and § 87(2)(b) said that he had no reason to be in handcuffs. PO Lapp became upset, started yelling and waving his arms in an animated way, and told § 87(2)(b) twice to “shut the fuck up.” He also said, “You guys are idiots.” While PO Lapp said this, § 87(2)(b) looked at PO Lapp with a mean look while thinking about punching him in the face. He did not swing at PO Lapp. He was still handcuffed and he made no attempt to get away. PO Lapp grabbed § 87(2)(b) by his neck with both hands and choked him, putting pressure around the neck, mostly on the right side. § 87(2)(b) pushed his chin down to try to loosen PO Lapp’s grip. He did not fight against PO Lapp or try to move away at this time. § 87(2)(b)’s breathing was slightly impeded. While doing this, PO Lapp banged the back of § 87(2)(b)’s head against the glass window behind him. This caused no injuries, although § 87(2)(b) later had a headache. PO Lapp then took one hand off § 87(2)(b)’s neck and left the other hand on § 87(2)(b)’s neck. PO Lapp held his hands around § 87(2)(b)’s neck for 5-7 minutes. While holding § 87(2)(b) PO Lapp told him to “shut the fuck up.”

PO Lapp asked the worker at the store, identified by the investigation as § 87(2)(b), if § 87(2)(b) had been inside five minutes earlier. § 87(2)(b) stated that he had not. § 87(2)(b) was taken out of the store, where he saw his mother, § 87(2)(b) and brother, § 87(2)(b). § 87(2)(b) was arguing with an officer, identified by the investigation as Sgt. Jun Zhen. PO Glueckert brought § 87(2)(b) to the marked police car, held him by his neck and threw him into the car. (Although § 87(2)(b) initially referred to this in the interview as a “choking,” he later clarified that PO Glueckert did not choke him at this time, but rather held him by the neck.) § 87(2)(b) sustained no injuries from this. § 87(2)(b) was transported with the other suspect to the 103rd Precinct stationhouse by PO Lapp and PO Glueckert.

At the stationhouse, while he was in the back, § 87(2)(b) heard his mother asking Sgt. Zhen (whose voice he recognized) for officers’ badge numbers, although he could not see this. Sgt. Zhen did not provide other officer’s badge numbers. § 87(2)(b) was told later by § 87(2)(b) that officers took their badges off their uniforms. § 87(2)(b) was charged with § 87(2)(b) and was taken to Central Booking. There, a woman asked § 87(2)(b) if he wanted to go to the hospital.

He said that he did not want to go to the hospital because it would delay his release. § 87(2)(b) was released later that day.

Since the incident, § 87(2)(b) has experienced pain in his neck, specifically the right side of his neck. § 87(2)(b) did not receive medical treatment.

Complainant/Witness: § 87(2)(b)

- A black female § 87(2)(b) with brown hair and brown eyes, § 87(2)(b) was § 87(2)(b) at the time of the incident.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on June 22, 2012 (encl. b10-14).

§ 87(2)(b) arrived at the scene after receiving a telephone call from a friend. When she got there, she saw three police cars in front of a store. § 87(2)(b) was there and told her that § 87(2)(b) had nothing to do with the robbery in question. She went inside the store and saw her son, § 87(2)(b) handcuffed. § 87(2)(b) asked PO Lapp why § 87(2)(b) was handcuffed. PO Lapp told § 87(2)(b) that her son was out there smoking marijuana. She stated that he had left her house only fifteen minutes earlier and that he was not smoking marijuana in the house. PO Lapp told § 87(2)(b) that § 87(2)(b) was being charged with robbery and she denied that he had robbed anyone.

§ 87(2)(b) followed the officers as they took § 87(2)(b) out of the store and toward a marked police vehicle. PO Lapp had one hand on top of § 87(2)(b)'s head and another hand around § 87(2)(b)'s neck as he put § 87(2)(b) in the car. § 87(2)(b) told PO Lapp to remove his hands from § 87(2)(b)'s neck and he told her that she was interfering with his job. After § 87(2)(b) was driven away, § 87(2)(b) spoke to a worker at the store. He told her that § 87(2)(b) was not around when the robbery took place, and that § 87(2)(b) got in trouble for speaking up in front of the officers. § 87(2)(b) watched a video from the store's camera, which showed PO Lapp grabbing § 87(2)(b) by his neck.

§ 87(2)(b) went to the 103rd Precinct stationhouse with § 87(2)(b). There, she asked what was happening with her son and spoke to Sgt. Zhen, who provided his name and badge number. Sgt. Zhen told § 87(2)(b) that no one choked her son and laughed at her. She asked to see § 87(2)(b) but was not allowed to do so. She asked Sgt. Zhen for the name of the officer who handcuffed § 87(2)(b) and he provided PO Lapp's name. § 87(2)(b) asked Sgt. Zhen for PO Lapp's badge number and he said that the badge number would be on the arrest report. Sgt. Zhen then told § 87(2)(b) that she could file a complaint and directed her to the CCRB. § 87(2)(b) told officers at the stationhouse that they needed to find out why kids are always murdering each other. An officer told her, "Everything starts at home."

§ 87(2)(b) called to § 87(2)(b) from the back of the stationhouse and asked her to get his ipod and keys, but she was not allowed to take the items. She became frustrated and exchanged words with Sgt. Zeng, who told § 87(2)(b) to leave the stationhouse. § 87(2)(b) then left. When § 87(2)(b) came home about three days later, he did not want to eat and complained of a sore throat. He told § 87(2)(b) that PO Lapp had put pressure on his throat when he grabbed him. § 87(2)(b) stated that he did not want to go to the hospital and she treated his throat with salt water. § 87(2)(b) does not plan on getting § 87(2)(b) medical treatment.

Attempts to Contact Witnesses

- Because § 87(2)(b) was a juvenile at the time of his arrest, none of his arrest documentation could be obtained. Online searches yielded no telephone numbers for § 87(2)(b). Therefore, no attempts could be made to contact him as a witness.
- On June 26, 2012, a call was placed to § 87(2)(b) who confirmed that he was working inside the store at the time of the incident. However, § 87(2)(b) stated that he did not recall anything PO Lapp said to § 87(2)(b) and he refused to make any statements regarding the force used.

§ 87(2)(g)

Video Evidence

- On June 22, 2012, § 87(2)(b) provided video footage to the CCRB which he stated was obtained from cameras at § 87(2)(b). PO Lapp identified himself in the footage, acknowledging that the video showed his interaction with § 87(2)(b) on June 5, 2012. The video contains no sound. The following images are seen in the video: (encl. b9)
 - Beginning at 1:15, PO Lapp enters the frame, followed by PO Glueckert. PO Lapp placed § 87(2)(b) against a wall and handcuffs him.
 - § 87(2)(b) enters the frame at 1:45, stands next to the officers and appears to say something before PO Glueckert points him away from the arrest. § 87(2)(b) moves back several feet and appears to continue speaking.
 - At 1:59, § 87(2)(b)'s attention is directed toward something outside of the frame and he walks away while talking.
 - PO Lapp leaves the frame at 2:22 while PO Glueckert remains with § 87(2)(b). § 87(2)(b) can be seen again at 2:45, speaking with several individuals in the background.
 - At 4:00, § 87(2)(b) walks toward PO Glueckert and appears to speak to him before leaving the frame. At 4:48, § 87(2)(b) is brought back by PO Lapp into the frame and toward the wall. PO Lapp appears to frisk § 87(2)(b) before turning him around and handcuffing him. It appears that the two exchange words during this time.
 - At 5:23, after turning § 87(2)(b) so his back is against the wall and keeping his left arm on § 87(2)(b)'s chest, PO Lapp appears to speak to § 87(2)(b) while gesturing with his right hand. § 87(2)(b) appears to speak as well while remaining standing against the wall.
 - At 6:15, PO Lapp brings § 87(2)(b) into the store and the frame switches to an interior view of PO Lapp standing by the store counter in between § 87(2)(b) and § 87(2)(b). The view switches again at 6:30 and shows PO Lapp from behind as he appears to speak with the store owner and places his hand periodically against § 87(2)(b)'s chest while speaking.
 - At 7:15, after § 87(2)(b) appears to speak to PO Lapp, PO Lapp places both of his hands against the chests of § 87(2)(b) and § 87(2)(b) and directs them to stand back-first against the store counter before removing his hands.
 - Beginning at 7:20, PO Lapp appears to address § 87(2)(b) while gesturing with both of his hands. § 87(2)(b) appears to speak as well. § 87(2)(b) sways slightly to and from the counter but remains in one place and does not step in any direction.
 - PO Lapp's gestures become more exaggerated until, at 7:30, he reaches forward and appears to place his left hand against § 87(2)(b)'s neck-chest area. § 87(2)(b)'s head moves back.
 - At 7:33, § 87(2)(b) turns his head to the right and appears to yell something before PO Lapp moves him back and places his right hand against § 87(2)(b)'s left shoulder.

- PO Lapp then keeps his left hand near § 87(2)(b)'s neck-chest area until 7:51 while speaking to § 87(2)(b) and gesturing with his right hand. He removes his left hand from § 87(2)(b) at about 7:53 before placing his right hand on § 87(2)(b)'s left shoulder, where it stays until the end of the video at 8:20.

NYPD Statement(s):

Subject Officer: PO BRIAN LAPP

- A white male § 87(2)(b) with blonde hair and blue eyes, PO Lapp was § 87(2)(b) old at the time of the incident.
- PO Lapp worked from 3:00 p.m. to 11:35 p.m. assigned to sector patrol with PO Kyle Glueckert. He was in uniform and was assigned to a marked RMP.

Memo Book

- 6:55 p.m., Pickup of robbery/assault. Civilian walked out of residence at § 87(2)(b) Canvas conducted – positive results; 7:10 p.m., Two stopped regarding robbery pickup; 7:39 p.m., Two arrests made at § 87(2)(b) – § 87(2)(b) § 87(2)(b) Victim: § 87(2)(b). (encl. c1-5)

CCRB Statement

PO Brian Lapp was interviewed at the CCRB on July 20, 2012 (encl. c6-8) At approximately 7:39 p.m. on June 5, 2012 PO Lapp was on patrol with PO Kyle Glueckert near § 87(2)(b) in Queens when § 87(2)(b) exited a nearby house with his father and approached the officers. § 87(2)(b) stated that twenty minutes earlier, he was trying to sell his phone outside a nearby deli, and that when he cancelled the transaction and walked away, five people followed, physically assaulted and robbed him. He did not provide names or descriptions of the perpetrators. PO Lapp conducted a canvass with § 87(2)(b) and his father in the car and they drove by the deli. There, from inside the car, § 87(2)(b) pointed out § 87(2)(b) a juvenile who stood inside the deli at the time and wore a striped yellow shirt. As § 87(2)(b) was placed in handcuffs, § 87(2)(b) who stood on the street one store away, verbally objected to the arrest. He did not physically interfere with the arrest. PO Lapp told § 87(2)(b) to be quiet, to mind his own business and that he and PO Glueckert were just doing their job.

PO Lapp and PO Glueckert returned to the RMP and asked § 87(2)(b) if he recognized anyone else as being involved in the robbery. § 87(2)(b) pointed out § 87(2)(b) as a suspect. PO Lapp handcuffed § 87(2)(b) who complied physically but continued to verbally protest. PO Lapp did not tell § 87(2)(b) to “shut the fuck up” or use any profanities toward § 87(2)(b) outside. He brought § 87(2)(b) and § 87(2)(b) inside the deli. About 6-7 people stood in front of the deli and more were gathering. The suspects were brought into the deli to avoid the crowd.

Inside the deli, PO Lapp asked the employee there if he had seen anything, and he replied that he had not. PO Lapp informed § 87(2)(b) that he had been picked out by § 87(2)(b) § 87(2)(b) continued to argue while § 87(2)(b) remained calm and compliant. PO Lapp tried to calm § 87(2)(b) down and explain what was happening. While rear-handcuffed, § 87(2)(b) stood with his back against a glass counter inside the deli and continued to argue. He denied committing the robbery and called PO Lapp and PO Glueckert “pussies.” § 87(2)(b) did not make any verbal threats or attempt to flee, but he used profanities and moved his chest around as

he argued with PO Lapp. § 87(2)(b) did not flail at this point, but he was not under control. He moved his feet and turned, but did not attempt to flee. This made PO Lapp uncomfortable and he did not feel safe, so he placed his right hand against § 87(2)(b)'s collarbone and held him against the wall. PO Lapp did not grab § 87(2)(b) around the neck, place pressure on his neck or attempt to restrict his breathing. He did not bang § 87(2)(b)'s head against the counter. PO Lapp called for assistance because there were so many people outside and they were yelling. Additional officers showed up, at which point another, unidentified officer placed § 87(2)(b) into a vehicle. While he was placed in the vehicle, § 87(2)(b) flailed his legs and shoulders and spat on the officer.

PO Lapp watched a video of the incident provided by § 87(2)(b). He recognized himself in the video and as the officer who can be seen making physical contact with § 87(2)(b) at the end of the video. He noted a motion by § 87(2)(b) away from the counter immediately preceding the physical contact as the movement to which he referred in his narrative. He recalled that when his hand was against § 87(2)(b) he was telling him to calm down. PO Lapp did not recall using any profanities toward § 87(2)(b) inside the deli.

PO Lapp did not hear § 87(2)(b) complain at any point that he had been choked or had difficulty breathing. § 87(2)(b) was placed under arrest and taken to the 103rd Precinct stationhouse.

Witness Officer: PO KYLE GLUECKERT

- *A white male who is § 87(2)(b) with brown hair and brown eyes, PO Glueckert was § 87(2)(b) old at the time of the incident.*
- *PO Glueckert worked from 3:00 p.m. to 11:35 p.m. assigned to sector patrol with PO Lapp. He was in uniform and was assigned to a marked vehicle.*

Memo Book

- 7:00 p.m., Pickup of a robbery at § 87(2)(b). Canvass with complainant; 7:10 p.m., Two males positively identified and stopped in front of § 87(2)(b) by PO Lapp; 8:00 p.m., Juvenile cell attendant – § 87(2)(b) 1:00 a.m., Relieved by PO Lapp. (encl. c9-11)

CCRB Statement

PO Kyle Glueckert was interviewed at the CCRB on August 21, 2012 (encl. c12-13). § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were both physically compliant as they were handcuffed, but § 87(2)(b) insisted that he did not commit any robbery. There was no physical struggle at this point, but there was a verbal altercation between § 87(2)(b) and PO Lapp. PO Glueckert was unable to describe details of this verbal argument because at the time he walked back and forth between the scene of the arrest and the vehicle of another unit that arrived, consisting of PO Gannon and PO York. Also at the scene was Sgt. Zhen. PO Glueckert did not hear PO Lapp tell § 87(2)(b) to “shut the fuck up.” He did not recall PO Lapp using any profanities toward § 87(2)(b) at any point.

PO Lapp went inside the store at the location with § 87(2)(b) to speak with an employee there. PO Glueckert went in and out of the store while PO Lapp conducted an investigation inside. PO Glueckert saw PO Lapp place his hand on § 87(2)(b)'s chest during a verbal argument. PO

Glueckert did not know why PO Lapp did this. He did not recall any physical movements by § 87(2)(b) that preceded the physical contact, although § 87(2)(b) argued about being arrested. He did not see PO Lapp place a hand on or around § 87(2)(b)'s neck and he did not see § 87(2)(b) hit against any surface when physical contact was made. PO Glueckert did not recall how long PO Lapp had his hand on § 87(2)(b) and he did not recall anything PO Lapp said at the time. When asked why PO Lapp had placed his hand on § 87(2)(b) PO Glueckert stated that PO Lapp was trying to calm § 87(2)(b) down because "it was a heated argument" and § 87(2)(b) did not like being in handcuffs. Rep. Janet Insardi asserted at this point that § 87(2)(b) was being aggressive. When asked to explain, PO Glueckert clarified that § 87(2)(b) was verbally aggressive. PO Glueckert stated, "They were both exchanging words and I guess PO Lapp didn't like the way he was talking to him."

PO Glueckert did not hear § 87(2)(b) complain of any injuries and did not notice any injuries to § 87(2)(b) following the arrest.

NYPD Document(s)

- **Arrest Report**

- § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of August 22, 2012 with regard to the incident. (encl. e1)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian(s) CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. a2):
 - § 87(2)(b)

Subject Officer(s) CCRB History

- PO Lapp has been a member of the service for 2 years and there are no substantiated CCRB allegations against him. (encl. a1)

Conclusion

Identification of Subject Officer(s)

- PO Lapp admitted to interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Brian Lapp spoke rudely to § 87(2)(b)

§ 87(2)(g) According to § 87(2)(b) PO Lapp told him several times during the incident to “shut the fuck up,” once in front of the store, before he was handcuffed and then three times inside. PO Lapp denied telling § 87(2)(b) to “shut the fuck up” or using any profanities toward § 87(2)(b) outside. He did not recall using any profanities toward § 87(2)(b) inside the store. PO Glueckert, the only officer alleged to have been present during PO Lapp’s statements, did not hear PO Lapp tell § 87(2)(b) to “shut the fuck up.” He did not recall PO Lapp using any profanities toward § 87(2)(b) at any point. § 87(2)(b) could not be contacted for a witness statement and § 87(2)(b) did not wish to provide a statement.

§ 87(2)(g)
it is recommended that Allegation A be closed as **unsubstantiated**.

Allegation B – Force: PO Brian Lapp used a chokehold against § 87(2)(b)

§ 87(2)(b) stated that PO Lapp grabbed him by his neck with both hands and choked him, putting pressure around the neck, mostly on the right side. He stated that his breathing was slightly impeded as a result. PO Lapp stated that he placed his right hand against § 87(2)(b)’s collarbone and held him against the wall, but denied that he grabbed § 87(2)(b) around the neck, placed pressure on the neck or attempt to restrict § 87(2)(b)’s breathing. PO Glueckert did not see PO Lapp place a hand on or around § 87(2)(b)’s neck.

A chokehold is described by NYPD Patrol Guide Procedure 203-11 as “any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air” (encl. i-ii). The video footage provided by § 87(2)(b) shows that PO Lapp’s hand was on or very close to the front-right part of § 87(2)(b)’s neck when he made physical contact. § 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]

[REDACTED] it is recommended that Allegation B be closed as **unsubstantiated**.

Allegation C – Force: PO Brian Lapp used physical force against § 87(2)(b)

It is undisputed that PO Lapp made physical contact with § 87(2)(b) while § 87(2)(b) was handcuffed inside the store. § 87(2)(b) stated that PO Lapp grabbed him by his neck with both hands, caused his head to hit against the counter and choked him for several minutes. According to PO Lapp, he placed his right hand against § 87(2)(b)'s collarbone and held him against the wall because he was uncomfortable with the way that § 87(2)(b) moved his chest and feet. PO Glueckert stated that PO Lapp placed his hand on § 87(2)(b)'s chest.

Police officers are required to use “minimum necessary force” in order to overcome resistance at the scene of a police incident. NYPD Patrol Guide Procedure 203-11 (encl. i-ii).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

, it is recommended that Allegation C be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date